

TENTATIVE RULINGS
Judge SHEILA RECIO, Dept. W8

Law & Motion is heard on Fridays at 9:30 a.m., *unless specially set.*

CIVIL COURT REPORTERS: Department W8 does not provide the services of an official court reporter for law and motion hearings. Please see the court's website for rules and procedures for court reporters obtained by the parties.

POSTING TENTATIVES: Department W8 endeavors to post tentative rulings for law and motion hearings by 5 p.m. on Thursdays. **Do NOT call the Department for a tentative ruling if none is posted.** The court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been prepared.

SUBMITTING ON THE TENTATIVE: If ALL sides intend to submit on the tentative ruling, please advise the Department's clerk or courtroom attendant by calling (657) 622-5908. If so advised, the tentative ruling shall become the court's final ruling and the prevailing party shall file and serve a Notice of Ruling and if appropriate, prepare a Proposed Order pursuant to Rule 3.1312 of the California Rules of Court. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

NO APPEARANCES: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court will determine if the matter is taken off calendar, the tentative ruling becomes the final ruling, or a different order is issued at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

REMOTE APPEARANCES: Department W8 conducts non-evidentiary proceedings, including law and motion via Zoom through the court's online check-in process available through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings>. All counsel and self-represented parties appearing for such hearings **must check-in at least 5 minutes before** the 9:30 a.m. hearing on Friday.

The court encourages the parties and attorneys to take advantage of remote appearances for non-evidentiary hearings to reduce travel time, parking costs, and potential hearing delays. However, keep in mind that potential technological or audibility issues could arise when using remote technology, which may require a delay of or halt the proceedings. To help

avoid such, please log in and test your equipment in advance of the hearing. Also, if technological or audibility issues arise during the proceeding, please call (657) 622-5908.

All remote video participants shall comply with the court's "**Guidelines for Remote appearances**", found at <https://www.occourts.org/system/files/guidelinesforremoteproceedings.pdf>.

IN-PERSON: Parties preferring to appear in-person for a law and motion hearing may do so, consistent with Section 367.75 of the Code of Civil Procedure and Orange County Local Rule 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

September 11, 2026

#	Case Name	
1	Owen vs. Aziyo Biologics, Inc.	<u>Motion – To Withdraw Counsel</u> No Tentative. Defendant ELUTIA INC. f/k/a AZIYO BIOLOGICS, INC. by and through its counsel BOWMAN AND BROOKE LLP, moves to withdraw the appearance of JORDAN S. TABAK and ERIC D. OLSON (both of BOWMAN AND BROOKE LLP) as counsel for Elutia Inc. According to the motion, other attorneys of Bowman and Brooke, LLP, would continue to represent Elutia Inc. Defendant cites no authority in support of the motion. Indeed, no memorandum of points and authorities were filed. Notably, Bowman and Brooke LLP is the attorney of record for the defendant. Further, no proof of service is provided showing service on either Jordan S. Tabak or Eric D. Olson, to whom the motion is directed. Also, no evidence is submitted showing

		that either the client or attorneys Tabak or Olsen consent to the requested withdrawal.
4	Orange County Sanitation District vs. Jackson	<u>Motion for Leave to Amend (re First Amended Complaint)</u> The court GRANTS Plaintiff ORANGE COUNTY SANITATION DISTRICT's motion for leave to file a First Amended Complaint against Defendants DONALD A. ISKIERKA, VIRGINIA L. ISKIERKA, PHILIP J. RIZZO, ANDREA L. RIZZO, HOOMAN K SHAHIDI, NAZANIN GHAFARIZADEH, BEVERLY K. UERLING, DEREK J. UERLING, MARK GERSON, MYRA GERSON, OLEG VOLF, YANINA GINZBERG, DEAN E. WEST, DEBORA A. WEST, FRANCIS LA PLACA, GAETANO LA PLACA, SHERI LA PLACA, KOZO TERAJIMA, FRANK H. CLARKE III, GERARD F. MCCABE, CATHERINE F. MCCABE, and HELEN J. LOWELL. The court may, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading. (Code Civ. Proc. § 473(a)(1).) California Rules of Court, rule 3.1324 governs a motion for leave to amend. California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. (<i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) Thus, leave to amend to more clearly state a plaintiff's theories of liability should be liberally allowed. (<i>Rainer v. Buena Community Memorial Hospital</i> (1971) 18 Cal.App.3d 240, 253-254.) This liberality only applies so long as there is no prejudice to the opposing party. (<i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564.) Finally, the court generally does not consider the validity of the proposed amended pleadings in deciding whether to grant leave to amend. After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading. (See <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) Plaintiff seeks to include the Doe defendants by name and add allegations specific to each Doe defendant. Plaintiff

also seeks to allege that defendants are being sued individually and, where applicable, in their capacity as trustee. For instance, for one Defendant (DOE 11, Eric Spear), property was transferred from Spear individually to the Eric Spear Separate Property Trust after this action commenced. Plaintiff seeks to clarify that the first cause of action is for public and private nuisance consistent with the court's ruling on 11/15/24. (ROA 173.) And Plaintiff seeks to amend the declaratory relief sought to be consistent with the language in Plaintiff's easement.

Defendants argue that Plaintiff has delayed in seeking leave to amend and has not justified that delay. There is insufficient evidence presented however that Plaintiff has delayed in seeking leave to amend. Further, delay alone is generally an insufficient basis to deny leave to amend.

If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (See *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.)

Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence or added costs of preparation, increased burden of discovery, etc. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488; see *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345.)

Defendants argue that granting leave to amend would prejudice them because they would incur additional costs in conducting discovery because "these new allegations will essentially make Defendants have to start discovery all over again." (Opp'n at 7:16-17.) Defendants have not provided sufficient evidence to support this contention. Defense counsel's declaration does not describe any additional discovery that will need to be conducted, for example.

		Defendants also argue that amendment is futile because the proposed First Amended Complaint removes allegations that Defendants’ alleged interference with Plaintiff’s easement must be “unreasonable” to be actionable. Plaintiff responds that Defendants mistakenly rely on cases concerning privately negotiated easements, whereas the easement in this matter was acquired through eminent domain and prohibits structures that interfere with Plaintiff’s “full use and enjoyment.” Where the opposing party claims the proposed pleading is futile, “[l]eave to amend should be denied only where the facts are not in dispute, and the nature of the plaintiff’s claim is clear, but under substantive law, no liability exists and no amendment would change the result.” (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428.) Defendants have not met this burden. In sum, the motion is GRANTED. Plaintiff SHALL separately file and serve the proposed First Amended Complaint within 10 days of this ruling. Plaintiff to give notice.
5	Calvillo Martinez vs. Martinez	<u>Motion to Advance Trial Date</u> The court DENIES Plaintiffs CLAUDIA VERONICA CALVILLO MARTINEZ and KAMAL ALEXANDER BENITEZ’s motion to advance the trial date. California Rules of Court, rule 3.1335 provides in relevant part, “A the party seeking to advance.... A case for trial must make this request by noticed motion or ex parte application under the rules in Chapter 4 of this division.” (Cal. Rules Ct., rule 3.1335(a).) “The request may be granted only upon an affirmative showing by the moving party of good cause based on a declaration served and filed with the motion or application.” (Cal. Rules of Ct., rule 3.1335(b).)

Plaintiffs argue that good cause exists to advance the trial date because Plaintiffs suffer ongoing injuries, experience financial hardship, and three material witnesses may not be available for the currently scheduled 9/20/27 trial.

Plaintiffs however do not establish good cause for an earlier trial date. Plaintiff Calvillo Martinez's declaration contains only legal conclusions and ultimate facts (versus evidentiary facts), that does not amount to competent evidence. (See, e.g., *Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 280-281 [finding conclusory assertions about a declarant's "anxiety, depression, and financial hardships" supported by no evidentiary facts about either his emotional or financial state to be insufficient to support setting aside default based on excusable neglect]; *United Parcel Service Wage & Hour Cases* (2010) 190 Cal.App.4th 1001, 1018 [finding a declaration consisting of only a recitation of legal conclusions and ultimate facts, without any evidentiary facts, was insufficient to establish a triable issue of fact to defeat summary judgment]; *Hayman v. Block* (1986) 176 Cal.App.3d 629, 640 [finding declarations containing "general and vague charges" do not qualify as "competent or credible evidence."].)

Even if the court considered the legal conclusions and ultimate facts presented in Plaintiff Calvillo Martinez's declaration, Plaintiffs do not show that any key witness will likely be unavailable to testify, only that their availability "may be affected." Plaintiffs also do not explain why any injuries or financial strain justifies an earlier trial date.

For these reasons, the court DENIES Plaintiffs' motion to advance the trial.

Note, the court did not consider the opposition papers filed by Defendant Martinez. Self-represented parties are to be served by non-electronic methods unless they affirmatively consent to electronic service, by: (1) serving a notice on all parties and filing the notice with the court, or (2) manifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving

		electronic service. (Code Civ. Proc., § 1010.6(c)(3); Cal. Rules Ct., rule 2.251(b)(1)(B).) The court record includes no affirmative consent by the self-represented plaintiffs to electronic service. Defendant is ordered to give notice of this ruling by non-electronic methods.
6	Burton vs. Orange County Department of Education	<u>Motion to Continue Trial</u> [Typographical error corrected below (in red) – 9/10/26 at about 12:05 pm.] The court GRANTS Plaintiff VERNON BURTON’s motion to continue trial. The 10/12/26 (5-7 day jury) trial is CONTINUED to 4/12/27, at 8:45 am in Dept. W8. All trial-related dates, including discovery and motion cut-off dates and deadlines, SHALL be based upon the new trial date. The court has examined the factors set forth in Rule 3.1332(c) and (d) of the California Rules of Court, as they pertain to this case. Here, discovery disputes remain pending: The depositions of Dave Connor and Sara Young remain outstanding, Defendant has moved to compel Plaintiff to submit to a mental examination, which is pending, and an IDC regarding the parties’ discovery dispute is set for 9/29/26. While Defendant argues that the motion is moot given that the court already continued the trial date from 8/3/26 to 10/12/26, given the outstanding discovery issues, the motion does not appear to be MOOT and the court finds good cause for a further trial continuance. The parties are ordered to meaningfully meet and confer in person on a stipulated discovery schedule for the depositions of Dave Connor and Sara Young, the extent and

		scope of the mental examination of Plaintiff, and the completion of expert discovery before the 9/29/26 IDC. Any disagreements on the discovery schedule dates should be addressed and resolved at the IDC. The parties are ordered to file a joint stipulated discovery schedule with the court for this court's signature and approval by 10/9/26. Plaintiff to give notice.
7	Dong vs. Bivens	<u>Motion for Trial Preference</u> The court DENIES Defendant KATHLEEN BIVENS's motion for trial preference. Code of Civil Procedure section 36(a) permits a party who is over 70 years of age to petition the court for trial preference, which the court must grant if it makes both of the following findings: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. The statute does not require "death or incapacity." (<i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 534 [finding trial preference appropriate where the 81-year-old plaintiff was suffering from stage 4 lung cancer, severe coronary artery disease, anemia, and other medical conditions and undergoing chemotherapy that cost significant physical and cognitive effects].) "Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's 'health ... is such that a preference is necessary to prevent prejudicing [the plaintiff's] interest in the litigation.'" (Italics added.)" (<i>Ibid.</i>) Section 36 "was enacted for the purpose of assuring that an aged or terminally ill plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted." (<i>Looney v. Superior Court</i> (1993) 16 Cal.App.4th 521, 532.)

In support of the motion, the moving party's attorney may submit the supporting affidavit based upon information and belief as to the medical diagnosis and prognosis of the moving party. (Code Civ. Proc., § 36.5.)

Apart from such mandatory preference, the court may also exercise its discretion to grant a motion "that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference." (Code Civ. Proc., § 36(e).) For discretionary preference, the court considers a number of factors, including the prejudice suffered by the defendant due to an accelerated trial. (*Salas v. Sears, Roebuck Co.* (1986) 42 Cal.3d 342, 346.)

Here, Defendant Bivens submits evidence that she is over 70 years of age and has a substantial interest in the litigation. (Rader Decl. ¶ 3.)

Bivens also submits evidence that she suffers from arthritis, receives ongoing medical treatment for associated pain, and that her condition may worsen over time. (Rader Decl. ¶ 3.) The court finds this evidence insufficient to show preference is necessary to prevent prejudicing Ms. Bivens's interest in the litigation.

Counsel declares that any substantial delay in bringing this matter to the trial *may* impair Defendant Bivens's ability to attend the trial, testify, or otherwise meaningfully assist in the presentation of her defense, but these legal conclusions do not qualify as competent evidence. (See, e.g., *Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 280-281 [finding conclusory assertions about a declarant's "anxiety, depression, and financial hardships" supported by no evidentiary facts about either his emotional or financial state to be insufficient to support setting aside default based on excusable neglect]; *United Parcel Service Wage & Hour Cases* (2010) 190 Cal.App.4th 1001, 1018 [finding a declaration consisting of only a recitation of legal conclusions and ultimate facts, without any evidentiary facts, was insufficient to establish a triable issue of fact to defeat summary judgment]; *Hayman v. Block* (1986) 176 Cal.App.3d 629, 640 [finding declarations containing "general and vague charges" do not qualify as "competent or credible evidence"].)

		To the extent Defendant Bivens argues that she is entitled to discretionary preference due to her age, based on the evidence presented, the court does not find that the interests of justice will be served by granting a discretionary trial preference. Plaintiff to give notice.
8	Antunez vs. General Motors LLC	<u>Motion for Attorney's Fees, Costs and Expenses</u> The court GRANTS in part Plaintiffs TOMAS ANTUNEZ and VERONICA SANCHEZ's motion for attorney's fees, costs and expenses. As a preliminary matter, there is no dispute that the motion is timely brought or that Plaintiffs are entitled to fees. The parties dispute the amount of fees sought. Plaintiff seeks fees in the total amount of \$27,258.00 and costs in the total amount of \$1,714.61. Defendant does not dispute that Plaintiffs are entitled to attorneys' fees. Rather, Defendant disputes the reasonableness of the amount claimed. When determining a reasonable attorneys' fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 998). The reasonable hourly rate is that prevailing in the community for similar work. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal. 4th 1084, 1095.). Plaintiffs' counsel M. NICHOLAS NITA declares that his hourly rate is \$625. (Nita Decl., ¶ 24.) In support of Plaintiffs' contention that Nita's rates are reasonable, Nita includes prior court decisions wherein his rates of up to \$575 in 2024 (LASC) and 2026 (LASC) were found to be reasonable. (Nita Decl., ¶¶ 81, 82). Nita also

includes information from the 2023 Real Rate Report published by Wolters Kluwer which reported that the mean rate for a partner in California in 2023 was higher than his current rate. (Nita Decl., ¶ 84.)

The court finds that Nita's rates are reasonable here.

"[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396; *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel are also "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements."].) The court will reduce the hours it determines were excessive or not supported. (See *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816).

Here, Nita attaches the billing records to his declaration.

In challenging attorney fees as excessive, "it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc.* (2008) 163 Cal.App.4th 550, 564.)

Here, Defendant challenges various time entries by Plaintiffs' counsel (See Opp'n, pp. 4-6). The court makes the following deductions:

- Prepared Lemon Law Representation Agreement (\$60)
- Intake call with client; obtained initial information on the vehicle and vehicle's problems (.3/\$45 [work was not done by attorney or paralegal])
- Sent initial email to client to send the vehicle's documents and supporting evidence (.1/\$15 [work was not done by attorney or paralegal])

- Met with client at the office. Created file and made copies of client's documents, repair history, sales documents, purchase contract (.4/\$80 [work was not done by attorney or paralegal])
- Prepared Lemon Law Representation Agreement (.3/\$60 [work was not done by attorney or paralegal])
- Communication with client (.1/\$20 [work was not done by attorney or paralegal])
- 3 hours from the Motion for attorney fees (\$1,875).
- \$3,935.50 in clerical error billing (July 25, August 7, 8, and 19, 2025 entries billing \$625 for .1 communications. Plaintiff failed to address this discrepancy in the Reply.)

Re Costs

Plaintiffs seek to recover \$1,714.61 in costs. Plaintiff filed a memorandum of costs on 3/27/26, concurrently with this motion.

Defendant did not file a motion to tax costs within 15 days + 2 court days after service of the cost memorandum. (Cal. R. Ct., rule 3.1700(b)(1). Further, the cost items at issue are recoverable as reasonable costs and expenses. (See Code Civ. Proc., § 1033.5(a).)

In sum, the court awards Plaintiffs their attorneys' fees in the total amount of \$21,167.50 and awards costs in the total amount of \$1,714.61.

Plaintiff to give notice.

OSC re Dismissal on Settled Case

The court resets the Order to Show Cause re: Dismissal on Settled Case to 2/1/27 at 9:00 AM in this department. No appearance is necessary if dismissal of entire action is filed and entered with the court. If dismissal of entire action is not entered, all counsel of record are to appear. Failure to appear will result in court dismissal of entire action.

		Plaintiff SHALL file and serve a status report <u>no later than 10 court days before</u> the hearing. Plaintiffs to give notice.
9	Pena vs. American Honda Motor Co., Inc.	<u>Motion for Attorneys' Fees</u> The court GRANTS in part Plaintiff CASPAR A. PENA's motion for attorney's fees. As a preliminary matter, there is no dispute that the motion is timely brought or that Plaintiff is entitled to fees. The parties dispute the amount of fees sought. Plaintiff seeks fees in the total amount of \$29,748.75. Defendant opposes the motion, requesting the court exercise its discretion to disallow fees altogether or alternatively, to greatly reduce counsel's requested attorney's fees to "at most" \$4,165.00. "In evaluating whether the attorney fee request is reasonable, the trial court should consider "' whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.'" (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 38.) "'Reasonable compensation does not include compensation for "'padding" in the form of inefficient or duplicative efforts....' [Citations.] "A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.'" (<i>Ibid.</i>) "[V]erified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (<i>Horsford v. Board of Trustees of California State University</i> (2005) 132 Cal.App.4th 359, 396.) In support of the hourly rates claimed by each attorney who worked on this matter, Plaintiff's counsel includes what seems to be a running tally of cases up to and including June 2026, where Plaintiff's counsel received

favorable attorney's fees and rates. (See, Exhs. 1-39.) The billing records pertaining to this case however were not addressed until Exh. 42 (258 pages into Plaintiff's provided evidence).

Plaintiff requests rates varying by attorney experience (12 different attorneys in total) and billing year. Based on the evidence presented, the attorneys who performed the majority of the work on this case were:

1. E. Schmitt, associate, 13.9 hrs. billed at \$475/hr. for 27.36% (Mtn, p. 9:28; Jacobson Decl., ¶¶ 56-57);
2. D. Gopstein, associate, 9.7 hrs billed at \$395/hr. and \$452/hr., for 19.09% (Mtn., p. 10:2; Jacobson Decl., ¶¶ 60-61);
3. S. Hovahnnisyan, associate, 5.2 hrs. billed at \$395/hr. for 10.24% (Mtn., p. 10:7; Jacobson Decl., ¶¶ 68-69); and
4. D. Mahnke, partner, 4 hrs. billed at \$350/hr. and \$400/hr., for 7.87% (Mtn., p. 9:25; Jacobson Decl., ¶¶ 48-49).

Combined, these four attorneys accounted for 64.56% of the work performed in this case. Based upon the foregoing and based upon the court's previous experiences with Lemon Law actions in Orange County, the court finds a blended hourly rate of \$450/hour to be reasonable for the attorneys who billed in this matter.

Plaintiff's counsel's invoices further show that five other timekeepers below billed a combined total of 6 hours on this case at a rate of \$175/hr. (See, Exh. 42.) However, the moving papers fail to offer any evidence as to the education, years of experience or even what classification of legal professional the billers are, e.g. law clerk, paralegal, legal secretary. The descriptions provided (primarily regarding filing and serving documents) suggest non-attorney work. The court strikes these amounts (6 hours @ \$175/hour = \$1,050.00).

Next, review of the billing entries submitted by Plaintiff, the billing for the most part appears reasonable, even accounting for "templated" documents. For instance,

Plaintiff billed 0.20 hr. for Motions in Limine Nos. 1-20, 0.1 hrs. to review Defendant's Motions in Limine Nos. 1-14, and 1.7 hours total for the opposition to compel arbitration.

However, the court strikes the 1.50 hrs. billed by Mr. Altman on 4/30/25 on Ex. 42, page 12. As noted by Defendant, Mr. Altman billed at \$950/hr. There are no other billing entries from Mr. Altman and the "Case Update" is not tied to any task.

The court further reduces the fees associated with preparing this instant motion to 2 hours.

Thus, the court strikes 4.7 hours of attorney time and \$1,050.00 (for 5 timekeepers at \$175/hour for 6 hours), making the total attorney hours recoverable to be 36.10 hours (44.80-10.7 hours).

Based upon the rate of \$450/hour and the 40.10 recoverable hours, the attorney rates total \$18,045.

Re Multiplier

Plaintiff requests a 1.25 multiplier. As explained by the court in *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, a lodestar figure may be "augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (*Id.* at 819.) "The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services." (*Ibid.*)

Applying a multiplier is discretionary. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 248.) “Of course, the trial court is not required to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) “In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under *Serrano III*.” (*Ibid.*)

“[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.” (*Ketchum*, 24 Cal.4th at 1139.)

Additionally, while the case was handled on a contingent fee basis, the one-sided mandatory statutory fee award reduced the risk otherwise inherent in a contingent fee case. (See *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1174-1175 [discussing FEHA fees award].)

The court DENIES Plaintiff’s request for a multiplier, as the case did not involve any novel or difficult legal or factual issues. This was a simple lemon law action, which did not require any complex litigation.

In sum, Plaintiff is awarded a total attorneys fee award of \$18,045.00.

Plaintiff to give notice.

10	Yang vs. General Motors LLC	<u>Motion for Attorney’s Fees, Costs, and Expenses</u> The court GRANTS in part Plaintiff Ki YANG’s motion for attorney fees and costs. The parties settled this Song-Beverly case before trial with Defendant agreeing to pay reasonable attorney fees, costs and expenses to Plaintiff as the prevailing party. As such, there is no dispute among the parties as to Plaintiff’s right to recover her attorney fees, costs, and expenses. The Song-Beverly Act provides for attorney fees, costs, and expenses to the prevailing party in a lemon law case. (Civ. Code § 1794(d).) “Determining a reasonable attorney fee award in Song-Beverly Act cases “ordinarily begins with the ‘lodestar,’ [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.” ’ [Citation.]” (<i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1157-1158.) “The Song-Beverly Act’s attorney fee provision “requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.” [Citation.]” (<i>Id.</i> at 1158.) “The reasonable hourly rate is that prevailing in the community for similar work.” (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095; see also <i>Chacon v. Litke</i> (2010) 181 Cal.App.4th 1234, 1260 [“reasonable market value” of counsel’s services is measure of reasonable hourly rate].) The relevant “community” is generally based on where the services were rendered, i.e., where the court is located. (<i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1242-1243.) “Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community in Orange County.” (<i>Tidrick</i>, 112 Cal.App.5th at 1157.) The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (<i>Heritage Pac. Fin., LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009; <i>569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 437.) The
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court may consider various other factors when determining a reasonable hourly rate, including the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. (*Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632.)

Based on the evidence provided by both parties, and on the court's own experience, the court finds an hourly rate of \$500 is commensurate with the Attorney Lee's level of skill and experience and consistent with the prevailing rates for consumer attorneys practicing in Orange County in Song-Beverly Act cases.

"[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396; *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel also are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements"].) "The party opposing the fee award can be expected to identify the particular charges it considers objectionable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections." (*Ibid.*) Fee award amounts are matters within the trial court's discretion because the "trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Upon reviewing Plaintiff's counsel's invoices, the court finds 4.9 hours to be excessive/unreasonable. This includes time spent on modifications to existing pleading templates or other routine work and for routine clerical tasks. The court therefore deducts a total of 4.9 hours from the request of 28.7 hours, which leads to a lodestar of 11,900.00.

Re Multiplier

Plaintiff requests a 1.1 multiplier. As explained by the court in *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, a lodestar figure may be “augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (*Id.* at 819.) “The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (*Ibid.*)

Applying a multiplier is discretionary. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 248.) “Of course, the trial court is not required to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) “In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under *Serrano III*.” (*Ibid.*)

“[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and

experience billing at the hourly rate used in the lodestar calculation.” (*Ketchum*, 24 Cal.4th at 1139.)

The court does not find any circumstances that warrant an upward adjustment. As such, **the court DENIES Plaintiff’s request for a multiplier.**

Re Costs

Plaintiffs seeks a total of \$600.13 in costs and expenses. Under Civil Code section 1794(d), as the prevailing party, Plaintiff is entitled to all “costs and expenses” that were reasonably incurred in prosecuting the case, including items beyond the statutory costs enumerated in Code of Civil Procedure section 1033.5. (*Jensen v. BMW of North Am.* (1995) 35 Cal.App.4th 112, 137-138.) Although Defendant contends otherwise, the electronic filing fee for the Case Management Statement is reasonably incurred. (See Code Civ. Proc., § 1033.5(14) [fees for electronic filing are allowable if the court requires electronic filing of documents].) The court finds all such costs and expenses to be reasonable awards costs in the requested amount of \$600.13.

In sum, the court awards Plaintiff attorney fees in the total amount of \$11,900.00 and costs in the total amount of \$600.13.

Re Settlement

According to both sides, the case has settled. The court therefore orders proceedings suspended pursuant to California Rules of Court, rule 3.1385. The parties are ordered to comply with rule 3.1385, by filing a dismissal upon completion of settlement terms.

The court VACATES the 7/6/27 trial date.

The court also sets an Order to Show Cause re: Dismissal on Settled Case for 2/22/27 at 9:00 AM in Department W08. No appearance is necessary if dismissal of entire action is filed and entered with the court. If dismissal of entire action is not entered, all counsel of record are to

		appear. Failure to appear will result in court dismissal of entire action. Plaintiff SHALL file and serve a status report <u>no later than 10 court days before</u> the hearing. Plaintiff to give notice of all of the above.
11	Mojica vs. General Motors, LLC	<u>Motion to Dismiss for Discovery Violations</u> The court GRANTS Defendant General Motors LLC's unopposed motion to dismiss action without prejudice and for imposition of costs. Defendant General Motors, the only named defendant, moves to dismiss this action without prejudice and for costs, pursuant to Section 871.26(j)(3) of the Code of Civil Procedure. Plaintiffs JORGE L MOJICA and M&J DESIGN INC. filed this lemon law action on 6/27/25 asserting causes of action for violation of Civ. Code § 1793.2(d), violation of Civ. Code § 1793.2(b), violation of Civ. Code § 1793.2(a)(3), breach of implied warranty of merchantability, and fraudulent inducement, based on the sale of a 2022 Chevrolet Silverado 1500 with alleged defects. Defendant argues that under Section 871.26(c) there is an expedited discovery process requiring Plaintiff to submit to deposition upon Defendant's election within 120 days of the filing of Defendant's responsive pleading. While Defendant does not provide evidence of its election under Section 871.29 in this motion, Defendant previously filed a motion to compel Plaintiffs' compliance pursuant to Section 871.26(c)(1), and for the statutory sanctions in the amount of \$1,500 against counsel pursuant to Section 871.26(j)(1), on the basis of its election under this chapter. On 4/27/26, Judge De La Cruz in Dept. CM02 granted Defendant's motion for compliance and imposed the \$1,500 of mandatory sanctions under Section 871.26(j)(1). Plaintiffs did not oppose the motion to compel compliance and did not contest that this chapter applies.

Plaintiffs also failed to oppose the instant motion. Accordingly, the court finds that Section 871.26 applies.

Dismissal without prejudice, and costs, are authorized under this section for a “plaintiff's repeated noncompliance.” Defendant has set forth the following:

On 2/6/26, after making several unsuccessful attempts to conduct Plaintiff’s deposition, Defendant filed a Motion for Compliance. (Lasater Decl., ¶ 3.) On 4/7/26, in preparation for the IDC conference, Defense counsel reached out to Plaintiffs’ counsel to meet and confer. On 4/13/26, Plaintiffs’ counsel stated they were available for deposition any date between 5/1/26 and 6/30/26. On 4/14/26, Defendant offered 4 days in that time range. Plaintiffs’ counsel did not respond. (Lasater Decl., ¶ 4, Exh. A.)

On 4/27/26, the court granted Defendant’s Motion for Compliance and Request for Sanctions. The court ordered both Plaintiffs to appear for deposition within twenty-one (21) days of the hearing and to pay sanctions in the amount of \$1,500 to Defendant. (Lasater Decl., ¶ 5, Exh. B [4/27/26 Order].)

On 4/28/26, Defendant followed up with Plaintiffs’ counsel based on the ruling on the Motion for Compliance and Request for Sanctions. GM requested to schedule Plaintiffs’ deposition. Counsel responded stating they were available between 5/11/26 and 5/15/26. Due to the confusion of the two email chains and the fact that Plaintiffs’ counsel never responded to Defendant’s 4/14/26 proposed dates, Defendant followed up with Plaintiffs’ counsel on 5/18/26. Defense counsel advised Plaintiffs’ counsel that it previously offered dates on 4/14/26 but no one responded. Defendant attached the email correspondence and asked for new dates. On 5/19/26, Plaintiffs’ counsel stated they were available any date between 5/20/26 and 6/26/26. Defendant responded and offered 6/15/26, 6/17/26 and 6/22/26. Plaintiffs’ counsel again did not respond. On 5/27/26, Defense counsel followed up again within the same thread and Plaintiffs’ counsel still did not respond. (Lasater Decl., ¶ 6, Exh. C [emails between counsel].)

		Because Plaintiffs failed to appear for their deposition notwithstanding the court's 4/27/26 Order requiring them to do so within 21 days, and because Plaintiffs have failed to oppose the instant motion, the court finds that Plaintiffs have engaged in repeated noncompliance and grants the relief afforded by Section 871.26(j)(3). Accordingly: The Complaint of Plaintiffs Jorge L Mojica and M&J Design Inc. is DISMISSED without prejudice, and Plaintiffs' attorney of record STRATEGIC LEGAL PRACTICES is ordered to pay costs [to be determined via timely cost memorandum] to Defendant, as set forth in Section 871.26(j)(3). The court also VACATES the scheduled 9/13/27 trial. Defendant to give notice and submit a proposed order.
13	Cabrera vs. Woodworth	<u>Motion to Quash Service of Summons and Complaint</u> The court GRANTS Defendants LING Z. WOODWORTH and JING ZENG's motion to quash service on the grounds of improper substitute service. Pursuant to Code of Civil Procedure section 415.20(b), "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served...<u>a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box,</u> at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a

copy of the summons and complaint were left.” (Code Civ. Proc., § 415.20(b), emphasis added.)

Service performed pursuant to this provision is “deemed complete on the 10th day after the mailing.” (Code Civ. Proc. § 415.20(b).)

Regarding the declaration of due diligence, “[o]rdinarily, ... two or three attempts at personal service at a proper place should fully satisfy the requirement of reasonable diligence and allow substituted service to be made.’ [Citation.]” (*Espindola v. Nunez* (1988) 199 Cal.App.3d 1389, 1391-1392.)

Here, Plaintiffs submitted two proofs of service for Ling Woodworth and Jing Zeng on 6/10/26. (See ROAs 23, 25). The proofs of service provide that substitute service was completed for each Defendant by Norman Vilchez, a registered California process server. Vilchez attested that he left the summons and complaint at the address 14319 Pointer Loop, Corona, CA 92880, and in the presence of Angie “Doe”, a co-occupant with the following description: “W, F, 40s, 5'4", 145lbs”. (See POS, ¶ 5.) Vilchez attests that he mailed copies of the documents to be served at the place where the copies were left. (See POS, ¶ 5.) He submitted a declaration of due diligence declaring that he attempted to serve Defendants at the Pointer Loop address 7 times between 5/14/26 and 6/4/26. (See POS, Decl. of Reasonable Diligence.)

In support of their motion to quash, Defendants Woodworth and Zeng each submit a declaration declaring as follows: “I have not been personally served with any summons and complaint in this action, and I am unaware of any attempts to personally serve me with the summons and complaint.” (Zeng Decl., ¶ 3; Woodworth Decl., ¶ 3.) “The address listed on Plaintiffs’ putative proof of service, 14319 Pointer Loop, Corona, California 92880, is not my residential address, nor is it my work address, nor is it my mailing address. I have not authorized anyone at that location to accept service of any pleadings on my behalf.” (Zeng Decl., ¶ 4, Woodworth Decl., ¶ 4.)

Plaintiffs contend that these declarations do not overcome the presumption of proper service set forth in Evidence Code section 647 because they are self-serving declarations that do not otherwise state where Defendants actually live, work, or receive mail. Plaintiffs contend that the language in the declarations - not “my residential address,” not “my work address,” and not “my mailing address” - leaves broader, more probative facts unaddressed.

While the declarations do not use the exact language of Section 415.20(b) in their declarations, the court does not find that this discredits their declarations. Compare, for example, in *Fernandes v. Singh* (2017) 16 Cal.App.5th 932, the court noted that while a declaration of non-service can rebut the presumption of proper service, the moving defendant’s declarations failed to do so because she submitted multiple, contradictory declarations. (*Fernandes*, 16 Cal.App.5th at 939.)

Here, Plaintiffs here do not provide any information which would discredit Defendants’ declarations. After Defendants submitted their declarations in support of their motion, Plaintiffs failed to demonstrate any connection Defendants have to the Pointer Loop address and failed to provide anything else which shows that Defendants’ declarations are not to be credited. Rather, Plaintiffs argue that because Defendants’ declarations do not go so far as to state where they do in fact live, work, or receive mail, they should not be credited. But this alone does not discredit their declarations.

Next, Plaintiffs argue that Defendants’ actual knowledge and access to the complaint are evidence that service substantially complied with the statutory requirements. Plaintiffs cite to

In *Dill v. Berquist Constr. Co.* (1994) 24 Cal.App.4th 1426, the court held that service of process “should be liberally construed to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant”. (*Id.* at 1436, citing *Pasadena Medi-Center Associates v. Superior Court* (1973) 9 Cal.3d 773.) But Plaintiffs failed to demonstrate substantial compliance.

		Plaintiffs have only established that Defendants had notice. “Actual notice of the action alone, however, is not a substitute for proper service and is not sufficient to confer jurisdiction. ‘[N]o California appellate court has gone so far as to uphold a service of process solely on the ground the defendant received actual notice when there has been a complete failure to comply with the statutory requirements for service.’ [Citation.]” (<i>American Exp. Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 391-392.) In sum, the motion is GRANTED. Plaintiffs to give notice.
14	Doe vs. Brown	<u>Motion to Compel Further Responses (re RFPs)</u> The court DENIES Plaintiff JANE DOE’s motion to compel further production from Defendant JAMAL BROWN to Plaintiff’s Requests for Production (Set One). On 8/14/26, the court CONTINUED Plaintiff’s motion to compel production re Nos. 1, 3, 16-20 and granted the parties leave to file further briefing. (See 8/14/26 Minute Order.) The court ordered Plaintiff’s further briefing to be served and filed no later than 8/19/26 and for Defendant’s response no later than 9/4/26. (Id.) While Plaintiff’s decision to label the brief an “amended” motion is perhaps confusing, given the context of the proceedings and this court’s previous order, the court finds Plaintiff intended to file her further briefing as permitted by this court’s 8/14/26 order. A motion to compel further responses “shall” set forth “specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310(b)(1).) To establish “good cause,” the burden is on the moving party to demonstrate both: (1) relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case), and (2) specific facts justifying discovery (e.g.,

why such information is necessary for trial preparation or to prevent surprise at trial). (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2019) ¶ 8:1495.6.) Arguments made in the moving papers or in a separate statement are insufficient to satisfy this requirement; good cause must be shown by way of admissible evidence, such as by declaration. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224.)

Only if good cause is shown by the moving party does the burden shift to the responding party to justify any objections made to document disclosure. (See *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 [re interrogatories]; see also Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2023) ¶ 8:1482.)

RFP No. 1

RFP No. 1 requests all documents reflecting or relating to the criminal case arising from the INCIDENT, including but not limited to police reports, arrest records, booking photos, court filings, minute orders, plea agreements, sentencing transcripts, probation reports, and any correspondence with your criminal defense counsel.

Plaintiff argues the criminal case records contain Defendant's guilty plea and the factual basis for the charges arising from the incident.

While good cause may exist for a subset or portion of the requested documents, Plaintiff does not show good cause for the production of all documents requested by this RFP.

RFP No. 3

RFP No. 3 requests all documents showing any payments made by Geraldine Hardy AKA Geraldine Jones (or anyone acting on her behalf) for your criminal Defense attorney fees in the criminal case arising from the INCIDENT.

Plaintiff argues that whether Hardy paid or arranged payment for Defendant's criminal defense fees is relevant to issues of agency, control, ratification, and aiding and abetting, and bear directly on issues of personal jurisdiction over Hardy. Plaintiff does not explain how Hardy's conduct in paying defense fees after the incident establishes any relevant agency, control, ratification, or aiding and abetting of Defendant's conduct during the alleged incident. Further, even if the court assumed Hardy paid the criminal defense fees, that fact is not material to the analysis of specific jurisdiction over Hardy in this action. The operative complaint pleads four causes of action based on an alleged incident that took place in September 2022. At best, the requested documents show only that Hardy had contacts with this state after the incident took place, during her son's criminal proceedings.

RFP Nos. 16-20

RPF Nos. 16-20 requests documents relating Defendant's financial condition and income for the period from 1/1/22 to present.

Plaintiff argues the requests are relevant to Defendant's outstanding criminal restitution obligation of \$81K stemming from the criminal action and the punitive damages claim pled against Defendant in this action.

Any outstanding criminal restitution obligation is outside the scope of this litigation (see TAC) and, therefore, does not establish good cause for the production of those documents here.

To the extent Plaintiff argues at hearing that the court should permit pretrial discovery pursuant to Civil Code section 3295(c), Plaintiff must file a separate motion for that relief.

Civil Code section 3295 sets forth the procedure for pretrial discovery relating to a defendant's financial condition. Specifically, subdivision (c) provides:

No pretrial discovery by the plaintiff shall be permitted with respect to the [among other things, the financial

condition of the defendant] unless the court enters an order permitting such discovery pursuant to this subdivision.... Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to section 3294. Such order shall not be considered to be a determination on the merits of the claim or any defense thereto and shall not be given in evidence or referred to at the trial.

Here, Plaintiff requests for the first time in her supplemental declaration that the court “set a procedure under Civil Code section 3295(c).” (Doe Supp. Decl. ¶ 14.) This does not provide Defendant with sufficient notice of the requested relief, especially where neither the notice of motion nor the amended notice of motion indicates that Plaintiff intends to seek discovery pursuant to section 3295(c). (See Cal. Rules Ct., rule 3.1110(a) [providing “[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order”].)

For the above reasons, the court **DENIES** the motion to compel production as to RFP Nos. 1, 3, 16-20.

Sanctions

The court finds the circumstances here make the imposition of sanctions unjust and as such, **DENIES** Defendant Brown’s request for monetary and other sanctions against Plaintiff Doe. (Code Civ. Proc., § 2031.310(c).)

Defendant to give notice.

15	Keller vs. Etheridge	<u>Motion for Summary Adjudication</u> OFF-CALENDAR. The matter was CONTINUED to 9/18/26, per Stipulation. (See 9/10/26 Minute Order.)
16	Samuel Hale 2, LLC vs. SS Personnel LLC	<u>Motion for Summary Judgment and/or Adjudication</u> The court GRANTS Plaintiff SAMUEL HALE 2, LLC dba SHE3's unopposed motion for summary judgment on the Complaint filed against Defendants SS PERSONNEL LLC, ROBERT MORINAGA, KENJI SEIJI T. MORINAGA, SIGNATURE SELECT PERSONNEL, LLC, and ESSENTIAL STAFF, LLC. Plaintiff's alternative motion for summary adjudication of issues is DENIED as MOOT. The Complaint asserts the following causes of action: 1. Breach of contract 2. Fraud in the inducement 3. Rescission 4. Unjust enrichment Except for the third cause of action, each cause of action is asserted against each defendant. The third cause of action (for rescission) is asserted against Defendant SS PERSONNEL LLC only. RJN: Plaintiff's request for judicial notice is GRANTED. (Evid. Code § 452(b) and (d).) On 11/12/25, the court entered an order pursuant to the parties' stipulation that Essential Staff, LLC is deemed to be the successor entity to SS Personnel, LLC and/or doing business as Essential Staff. The Complaint is deemed amended to substitute and/or add Essential Staff, LLC as a Defendant in place of, or in addition to, SS Personnel, LLC, and Essential Staff, LLC shall assume all liabilities alleged against SS Personnel, LLC in the existing Complaint. (ROA 175.) According to Plaintiff's proffered evidence:

Plaintiff is a professional employer organization engaged in obtaining workers' compensation coverage for their client's employees. (Plaintiff's Material Fact ("PMF") 1.) Defendant Robert Morinaga ("Robert") is the 100% owner and operative of the staffing agency, SS Personnel, LLC dba Essential Staff. (PMF 2-4.) Defendant Kenji Morinaga ("Kenji") is Robert's father. (PMF 5.) Kenji owns and operates Defendant Signature Select Personnel, LLC. (PMF 6.)

In 2022, after being terminated by its prior insurer, SS Personnel contacted Plaintiff for its workers' compensation coverage. (PMF 7.) Plaintiff required SS Personnel to submit specific information and documents to apply for coverage, and Plaintiff informed Robert that it would not enter into the CSA if Kenji or Signature Select were involved in SS Personnel's business operations or had any affiliation with SS Personnel. (PMF 8-9.) Robert represented that SS Personnel was a completely separate business operation from Signature Select, and that Kenji was not involved with SS Personnel. (PMF 10.) Robert's application listed Robert as the 100% CEO. (PMF 11-12.)

After this action was commenced, Plaintiff discovered that Signature Select and SS Personnel entered into a written agreement in which Signature Select agreed to provide its assets, personnel, its offices, and support to SS Personnel for a monetary amount. (PMF 13.) Kenji made lease payments for offices that Signature Select and SS Personnel shared. (PMF 14.) Robert used employees that were paid by Signature Select and/or Kenji to perform SS Personnel's business operations. (PMF 16-17, 20-25.) Robert did not separate his business from Kenji until 2023. (PMF 19.) Signature Select did not maintain workers' compensation insurance coverage. (PMF 26.)

Robert's resume that was received by Plaintiff in the application process contained false information regarding Robert's education and work history. (PMF 27-30.)

Plaintiff requested a complete list of SS Personnel's active client worksites. (PMF 8.) Plaintiff received SS Personnel's active client list, which did not include National Retail Transportation ("NRT"), one of SS Personnel's highest-risk client worksites. (PMF 31-33.) Thus, Plaintiff did not provide insurance coverage for NRT.

Based on the documents it received Plaintiff and SS Personnel entered into a Client Service Agreement ("CSA") on 2/10/22 in which Plaintiff agreed to obtain workers' compensation insurance for "Covered Employees" of SS Personnel. (PMF 34-38.) "Covered Employees" were defined as SS Personnel temporary employees whose "PACT Form and Form I-9" have been submitted to Samuel Hale, and thereafter approved by Samuel Hale, prior to the temporary employee commencing employment. (PMF Nos. 38.) Plaintiff would not be considered a co-employer required to procure workers' compensation coverage for any individual that does not have those aforementioned documents submitted. (Ibid.)

Plaintiff performed under the CSA by providing workers' compensation coverage for temporary employees. (PMF 48.) However, SS Personnel submitted workers' compensation claims for employees that were not "Covered Employees," including individuals who were injured while working at NRT. (PMF 43.)

On or around 4/6/23, Plaintiff terminated the CSA and cancelled the policy provided to SS Personnel because SS Personnel breached the CSA by making misrepresentations to Plaintiff and submitting fraudulent workers' compensation claims. (PMF 47.)

1st C/A (breach of contract)

"[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the

plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

The Complaint alleges that Defendants breached the CSA “by fraudulently submitting workers’ compensation claims for injured workers that were not employees of Defendants.” (Compl., ¶ 24.) Section 5.6 of the CSA states, “Any misrepresentation made by CLIENT or its agents to SHE, its agents, brokers, insurance carriers, third party administrators, assigns and the like shall be considered a material breach of this Agreement and shall void this Agreement, and SHE shall be entitled to restitution for monies or fees/charges for services accrued under this Agreement.” (PMF 40; see also PMF 37-39.)

The court finds that Plaintiff has established the existence of a contract (the CSA) and Plaintiff’s performance under the CSA. (PMF 35-38, 48.) Plaintiff has also established Defendants’ breach of the CSA. (PMF 7-33, 43-45.)

As the moving party, Plaintiff must also establish the amount of damages it incurred. (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241-242 [“As damages are an element of a breach of contract cause of action [], a plaintiff cannot obtain judgment on a breach of contract cause of action in an amount of damages to be determined later.”]; *Pajaro Valley Water Mgt. Agency v. McGrath* (2005) 128 Cal.App.4th 1093, 1106 [to prevail on a motion for summary judgment where damages are an element of the plaintiff's action, the plaintiff must meet its initial burden of production with respect to both the fact of damages and the amount of damages]; *Dept. of Indus. Relations v. UI Video Stores, Inc.* (1997) 55 Cal.App.4th 1084, 1097 [summary judgment inappropriate where issues concerning the calculation of damages remain to be determined].)

The court finds that Plaintiff shows it has been damaged in the amount of \$657,661.95, including expenses spent providing workers’ compensation coverage for all claims submitted under the policy pursuant to the CSA. (PMF 39-48.)

Plaintiff has also established that the parties expressly agreed that SS Personnel would bear litigation expenses and attorney's fees arising from disputes connected to SS Personnel's contractual performance and conduct. (PMF 39-40.) Thus, Plaintiff is entitled to also recover its reasonable attorney's fees and litigation expenses of \$231,357.06 incurred in prosecuting the breach of contract claim. (PMF 49.)

2nd C/A (fraud in the inducement)

To state a cause of action for fraud, Plaintiff must allege the following with specificity: (1) a misrepresentation, (2) knowledge of its falsity, (3) intent to defraud, 4) justifiable reliance, and (5) damages. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645 [specific pleading requirement for fraud necessitates pleading facts that show the how, where, when, and who of the fraudulent conduct].) "Fraud in the inducement is a subset of the tort of fraud. It occurs when the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is voidable." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294–295, internal quotation marks omitted.)

Plaintiff shows that SS Personnel and Robert made multiple misrepresentations and omissions to Plaintiff during the application period, despite being under a duty to disclose those material facts during the application process and the contract period. (PMF 27-46.) Plaintiff also proffers evidence showing that Defendants intended to induce Plaintiff to rely on their misrepresentations and concealment to provide workers' compensation coverage for SS Personnel, and that Plaintiff relied on the misrepresentations and omissions in providing that coverage. (Id.) Plaintiff also shows it suffered out of pocket damages due to Defendants' misrepresentations and concealment in the amount of \$657,661.95, including expenses spent providing workers' compensation coverage for all claims submitted under the policy pursuant to the CSA. (PMF 39-48.)

3rd C/A (rescission)

If the consent of a contracting party was obtained through fraud, that party can rescind the contract. (Civ. Code, § 1689.) Rescission requires each party to the contract to restore to the other everything of value received under the contract: “[T]o effect a rescission a party to the contract must, promptly upon discovering the facts which entitle him to rescind if he is free from duress, menace, undue influence or disability and is aware of his right to rescind:

[¶] (a) Give notice of rescission to the party as to whom he rescinds; and [¶] (b) Restore to the other party everything of value which he has received from him under the

contract or offer to restore the same upon condition that the other party do likewise, unless the latter is unable or positively refuses to do so.” (Civ. Code, § 1691. See also, *Viterbi v. Wasserman* (2011) 191 Cal.App.4th 927, 935.)

“When notice of rescission has not otherwise been given or an offer to restore the benefits received under the contract has not otherwise been made, the service of a pleading in an action or proceeding that seeks relief based on rescission shall be deemed to be such notice or offer or both.” (Civ. Code, § 1691.) In a claim for rescission, the “aggrieved party shall be awarded complete relief, including restitution of benefits, if any, conferred by him as a result of the transaction and any consequential damages to which he is entitled; but such relief shall not include duplicate or inconsistent items of recovery.” (Civ. Code, § 1692.)

The court finds that Plaintiff met its initial burden of establishing that Defendants induced Plaintiff to enter into the CSA through misrepresentations and concealment and that Plaintiff relied upon these representations and omissions in deciding to enter into the CSA. (PMF 8-46.) Thus, Plaintiff is entitled to rescind the CSA. Plaintiff has also shown that it incurred damages in the amount of \$657,661.95. (PMF 39-48.)

4th C/A (unjust enrichment)

The Court of Appeal for the First District, Second Division, has held that “[u]njust enrichment is not a cause of action,

however, or even a remedy, but rather a general principle, underlying various legal doctrines and remedies. It is synonymous with restitution.... Unjust enrichment has also been characterized as describing the result of a failure to make restitution....” (*McBride v. Boughton* (2004) 123 Cal.App.4th 379, 387.) In *Peterson v. Celco Partnership* (2008) 164 Cal.App.4th 1583, 1593, the Fourth District, Third Division Court of Appeal set forth the elements for unjust enrichment: the receipt of a benefit and the unjust retention of the benefit at the expense of another. Although unjust enrichment is not a cause of action, the Court may choose to treat this claim as one for restitution. (*Ibid*; *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231.)

Under the law of restitution, “an individual is required to make restitution if he or she is unjustly enriched at the expense of another. A person is enriched if the person receives a benefit at another’s expense. Benefit means any type of advantage.... The person receiving the benefit is required to make restitution only if the circumstances are such that, as between the two individuals *First Nationwide Savings v. Perry*, it is unjust for the person to retain it.” ((1992) 11 Cal.App.4th 1657, 1662-1663.)

Plaintiffs show that Defendants retained a benefit of Plaintiff handling and providing workers’ compensation coverage for claims that SS Personnel submitted on behalf of employees that were not “Covered Employees.” (PMF 45-48.) Plaintiff also shows that it incurred damages in the amount of \$657,661.95. (PMF 39-48.)

In sum, Plaintiff has met its burden on summary judgment. Defendants, who failed to file any opposing papers, have failed to show any triable issue of material fact. As such, Plaintiff’s motion for summary judgment is GRANTED.

The court VACATES the scheduled 5/3/27 trial.

Plaintiff to give notice and prepare a proposed Judgment.
